

unprecedented scale. Most organisations assume that their only choice is to buy expensive code scanning software that scans their own code and issues a Protex report concerning a product, which often doesn't flag problems that result in litigation.

It is not advisable to rely blindly on code scanners as they work too late in the process to improve your governance and too early in the process to catch problems in your delivery and post-sale provisioning. Code scanners do the less important parts of the job, expensively, and do not do the more important parts of the job at all. Use them where they are cost-effective, as a supplement to your own governance and verification processes, but not as a primary tool for risk management.

There are more efficient ways to manage open source software without fear of legal risks. It is better to get on early in the process than pay to defend yourself against legal action. The key to compliance is governance. Software governance means the processes by which businesses document and control what software they take in, what software they distribute, and what licence terms they incur or offer on those inbound and outbound transactions. Whether the business is selling physical products with software embedded, or software products and services, good software governance is the key to minimum-cost preparation when it comes to meeting compliance obligations.

Open source is no longer a choice but a necessary raw material as you build your company; so hire knowledgeable

team members to build efficient, compliant systems at the very onset, because you need to use your resources efficiently.

In my experience of working with commercial parties building GPL compliance programs—as well as in my role as a lawyer representing GPL licensors coping with the consequences of compliance failures—I have observed that there is a significant mismatch between the assumptions businesses make about compliance and the realities of what goes wrong, what causes disputes, and how those disputes are resolved. Often, companies incur great expenses in preparing to avoid unlikely risks that have low historical incidence of occurrence and low cost of remediation, while leaving unmanaged the risks that have historically resulted in all the litigation and other adverse outcomes.

Businesses must, therefore, prepare to meet their compliance obligations with minimal effort and at minimal cost, dealing preventively with the compliance risks they really face. **END** 🐧

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